NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

Date: 07.12.2022

CA(CAA) No.67/230-232/NCLT/AHM/2022
(Sections 230-232 of the Companies Act, 2013)

In the matter of:

HFW Textiles Private Limited	.... Applicant Company / Transferor Company
With	
MBM Textiles Private Limited	.... Applicant Company / Transferee Company

For Clarification

The present application was heard and reserved for the order.

While perusing the records, it is found that the consent affidavits of all the Equity Shareholders and Unsecured Creditors of the Applicant Companies annexed to the application are photocopies and not the original affidavits. Moreover, the applicant companies have not annexed Board Resolutions / Authorization Letters in support of the authorization for filing consent affidavits with respect to all the Equity Shareholders and Unsecured Creditors of the Applicant Companies for Scheme approval. Therefore, the applicant companies are directed to clarify this.

List the matter for clarification on 13.12.2022

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

Sudha